



Subscription Agreement

iNXT BrokerVerse OOTB (SaaS)

Prepared by – **iorta TechNXT**

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1. Document Control

Date	Version	Author & Business Unit Info	Reviewed By & Business Unit Info	Approved By & Business Unit Info	Change History
03 October 2026	1.0	iorta TechNXT Corp.	Legal counsel (to be completed)	To be completed	Template for discussion; subject to review by the parties' legal counsel

2. Acronyms

Acronym / Symbol	Definition / Meaning
CSV	Comma-separated values
MSA	Master Services Agreement
NPC	National Privacy Commission
OOTB	Out of the box
PHP	Philippine peso
SaaS	Software as a service
SLA	Service level agreement
UAT	User acceptance testing
VAT	Value-added tax
XLSX	Excel workbook

3. About this template

Template for discussion; subject to review by the parties' legal counsel.

This Software Subscription Agreement (the **Subscription Agreement**) sets the terms of a subscription to iNXT BrokerVerse OOTB. It forms part of the Master Services Agreement (the **MSA**) between iorta TechNXT Corp. and the Client when an Order Form names it. Capitalised terms not defined here have the meaning given in the MSA. Text in [square brackets] is a placeholder or an option.

4. Agreement and definitions

4.1 Parties

This Subscription Agreement is made on [date] between **iorta TechNXT Corp.**, SEC registration no. [number], with principal office at [address] (**iorta TechNXT**), and **[Client legal name]**, SEC registration no. [number], with principal office at [address] (the **Client**), under the MSA dated [date] and Order Form no. [number].

4.2 Definitions

Term	Meaning
Subscription	The right to use the Platform for the Subscription Term, with updates and standard support
Subscription Term	The Initial Term and each Renewal Term
Initial Term	The committed term stated in the Order Form, starting on Go-Live; at least 12 months
Renewal Term	Each period of 12 months after the Initial Term, unless the Order Form states another period
Subscribed Users	The number of Named Users stated in the Order Form, as changed under this Subscription Agreement
Billable Users	The higher of the Subscribed Users and the minimum billable users of the Client's size
Monthly Fee	The monthly subscription fee for the Billable Users, calculated on the graduated slabs
Onboarding Fee	The one-time fee for setting up the Subscription, equal to the implementation fee unless the Order Form states otherwise

5. Subscription

5.1 Right of use

1. During the Subscription Term, iorta TechNXT grants the Client a non-exclusive, non-transferable, non-sublicensable right to access and use the Platform for the internal business of the Client as a licensed insurance broker, by up to the Billable Users.
2. The Subscription includes: the right of use of the OOTB version; updates, releases and regulatory form updates released for all customers; and standard support under the Service Level Agreement.
3. Hosting is not included in the Subscription. The Platform is hosted either by iorta TechNXT under the Hosting and Infrastructure Services Agreement or by the Client, as stated in the Order Form.
4. The restrictions in the Perpetual Software Licence Agreement (Restrictions clause) apply to the Subscription with the necessary changes.

5.2 Users and slabs

The Monthly Fee is calculated on graduated slabs: users 1 to 25 at the Small rate, users 26 to 100 at the Medium rate, users 101 to 300 at the Large rate and users above 300 at the Enterprise rate.

Users in slab	Price per user per month, Year 1 (PHP)	Minimum billable users of the size
1 to 25	3,200.00	Small: 10
26 to 100	2,800.00	Medium: 26
101 to 300	2,400.00	Large: 101
Above 300	2,000.00	Enterprise: 301

1. The size is set by the number of Subscribed Users. The minimum billable users of the size apply even if fewer users are active.
2. Example: 40 Subscribed Users are billed as 25 users at PHP 3,200.00 and 15 users at PHP 2,800.00, which is PHP 122,000.00 a month in Year 1.
3. The rates above are list rates of the price book dated 03 October 2026. The rates of the signed Order Form prevail.

5.3 Adding and reducing users

1. The Client may add Subscribed Users at any time by written request or Order Form. Added users are billed from the first day of the month after they are activated, at the slab rates then applicable, for the rest of the Subscription Term.
2. The Client may reduce Subscribed Users only with effect from the start of a Renewal Term, on at least 60 days' written notice, and not below the minimum billable users of the size.
3. iorta TechNXT may check the number of active Named Users from the User Management records of the Platform. Active users above the Subscribed Users are billed from the month they first exceeded it.

6. Term and renewal

6.1 Initial Term

The Subscription starts on Go-Live and continues for the Initial Term stated in the Order Form ([12 / 36 / 60] months). The minimum Initial Term is 12 months. Use of the Platform before Go-Live for configuration, testing and training is covered by the Onboarding Fee.

6.2 Auto-renewal

At the end of the Initial Term and of each Renewal Term, the Subscription renews automatically for a Renewal Term, unless either Party gives written notice of non-renewal at least 90 days before the end of the current term.

6.3 Committed term

The Client may not terminate the Subscription for convenience during the Initial Term, unless the Order Form provides an early termination right. [If the Order Form provides one, the Client pays an early termination fee equal to [all / 50% of] the Monthly Fees for the remainder of the Initial Term.]

7. Fees and billing

7.1 Onboarding Fee

The Onboarding Fee is invoiced 40% on signing of the Order Form, 40% on UAT sign-off and 20% on Go-Live, as stated in the Implementation SOW.

7.2 Monthly Fee

1. The Monthly Fee is invoiced monthly in advance, on the first day of each month, from Go-Live. The first and last months are prorated by day.
2. The Monthly Fee increases by 5% at each anniversary of Go-Live, for the Initial Term and every Renewal Term.
3. [Option: if the Order Form states that the Client prepays the Subscription yearly in advance, the Monthly Fee for the year is invoiced at the start of the year with the prepayment discount in the Order Form.]
4. Invoices are payable within 30 days of the invoice date. Fees exclude VAT, which is added at the rate in force. Withholding tax is handled as stated in the Taxes clause of the MSA.

7.3 Suspension for non-payment

1. If an undisputed invoice remains unpaid 60 days after its due date, iorta TechNXT may suspend access to the Platform after giving the Client at least 10 Business Days' written notice that states the amount due and the suspension date.
2. During suspension, Client Data is kept intact and the Client's System Administrator may still sign in to export reports, unless the Client has also breached the Acceptable use clause.
3. iorta TechNXT restores access within 1 Business Day after receiving payment of all overdue amounts. Fees continue to accrue during suspension.
4. If an overdue amount remains unpaid 30 days after suspension starts, iorta TechNXT may terminate the Subscription under the MSA.

8. Acceptable use

The Client shall not, and shall ensure its Users do not:

1. use the Platform in breach of law, including the Data Privacy Act of 2012, the Insurance Code and the tax laws;
2. upload malicious code, or content that infringes the rights of others;
3. attempt to gain unauthorised access to the Platform or to other customers' data, test its security without written consent, or interfere with its operation;
4. share sign-in credentials, or let a person use the Platform under another person's account;
5. use automated means to extract data in volumes that degrade the service, except through the delivered exports and reports.

iorta TechNXT may suspend a User account that breaches this clause, informing the Client immediately.

9. Service levels

Support, severity levels, response and restore targets, service credits, escalation and reporting are as stated in the Annual Maintenance and Support Agreement and Service Level Agreement, which applies to the Subscription without a separate AMC fee. Availability targets apply when iorta TechNXT hosts the Platform, under the Hosting and Infrastructure Services Agreement.

10. Client Data on exit

10.1 Data during the term

The Client owns its Client Data. During the Subscription Term, the Client can export Client Data at any time through the delivered reports and exports (XLSX, CSV and PDF).

10.2 Data return

1. On expiry or termination, the Client may request, within 60 days, a full export of the Client Data. iorta TechNXT delivers it within 30 days of the request as: (a) a PostgreSQL database dump of the Client's database; (b) an archive of the uploaded documents in their original formats; and (c) CSV extracts of the main registers listed in the Documentation, with the data dictionary.
2. One full export is included. Further exports, data mapping to a new system and transition assistance are provided at the day rates of the Order Form. The steps, formats, timelines and the certificate of deletion are set out in the Exit and Transition Plan.
3. During the 60-day period, iorta TechNXT keeps the Client Data and may keep read-only access open for the System Administrator at [no charge / the Monthly Fee prorated].

10.3 Data deletion

1. After the export is delivered and confirmed by the Client, or 60 days after expiry or termination if the Client makes no request, iorta TechNXT deletes the Client Data from the production and non-production environments within 30 days.
2. Backups that contain Client Data expire under the backup retention in the Hosting and Infrastructure Services Agreement (at most 35 days for daily backups, 12 months for monthly copies, and 10 years for year-end copies only if the Client has instructed that retention), and are not restored except to comply with law.
3. iorta TechNXT gives the Client a written certificate of deletion within 10 Business Days of completing deletion, signed by its data protection officer.
4. iorta TechNXT may keep Client Data longer only where law requires, under the Data Processing Agreement, and keeps it confidential and protected.

11. Term and termination

1. This Subscription Agreement lasts for the Subscription Term.
2. Either Party may terminate it for cause under the MSA.
3. On expiry or termination: the right of use ends; the Client pays all Fees due up to the end date; the Client Data on exit clause applies.

12. Signatures

For iorta TechNXT Corp.	For [Client legal name]
Signature: _____	Signature: _____
Name: [name]	Name: [name]
Title: [title]	Title: [title]
Date: [date]	Date: [date]

13. Schedule 1: subscription details

Item	Value
Order Form no.	[number]
Subscribed Users	[number]
Size and minimum billable users	[Small 10 / Medium 26 / Large 101 / Enterprise 301]
Billable Users	[number]
Monthly Fee, Year 1 (excluding VAT)	PHP [amount]
Discount, if any ([lever])	PHP [amount] a month, for [the Initial Term]
Onboarding Fee (excluding VAT)	PHP [amount]
Initial Term	[12 / 36 / 60] months from Go-Live
Renewal Term	12 months
Notice of non-renewal	90 days before the end of the term
Yearly increase	5% at each anniversary of Go-Live
Hosting	[iorta TechNXT on AWS Singapore / Azure Southeast Asia / local partner / Client hosted]
Prepayment	[Monthly in advance / yearly in advance]

14. Document Sign-Off

Serial Number	Description	Owner	Status
1	Review and completion by the parties' legal counsel before signature	iorta TechNXT	Open

Sign Off Date	Signature	Approved By	Department & Project Role



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